

Court No. - 32

Case :- WRIT - C No. - 1465 of 2020

Petitioner :- Tahir Bakhsh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ashish Kumar, Rakesh Kumar Pandey

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the Recovery proceedings in pursuance of recovery citation dated 05.12.2019 (Annexure No. 4 to this writ petition) issued by the Tehsildar, Tehsil & District Jhansi-respondent no. 3.

(ii) Issue a writ, order or direction in the nature of mandamus commanding and directing the Respondent No. 4 i.e. Executive Engineer, Urban Electricity Distribution Division 2 Jhansi to decide the representation dated 29.07.2019 of petitioner (Annexure No. 3 to this writ petition).'

Heard learned counsel for the petitioner, Mr. Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the

learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 6 weeks, the impugned recovery citation dated 05.12.2019 issued by the respondent no. 3 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 17.1.2020

Arun